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Judgment Sheet
IN THE LAHORE HIGH COURT,
Multan Bench, Multan
JUDICIAL DEPARTMENT

C.R. No.364-D/2024

Muhammad Akram, etc.

Vs.

Sarfraz, etc.

JUDGMENT

Date of hearing:	22.12.2025
Petitioners by:	Mr. Wajahat Hussain Khan Langah, Advocate.
Respondents by:	Waqi Hassan Malik, Advocate.

SYED AHSAN RAZA KAZMI, J. Through this Civil Revision, the petitioners have challenged the judgment and decree dated 09.02.2024 passed by learned Appellate Court.

2. Briefly stating the facts of the case are that respondents instituted a suit for declaration against the petitioners before the learned Trial Court averring therein that property mentioned in the headnote of the plaint was owned by their predecessor-in-interest who died and they being legal heirs are owners of the suit property and respondents have no concern with the same, but the predecessor-in-interest of respondents No.1 to 3 in connivance with revenue officials got attested mutation No.336 dated 19.07.1994 in his favour through fraud and misrepresentation and the same as well as the mutations attested thereafter in favour of subsequent vendees on its basis are inoperative upon the rights of the petitioners. The suit was contested by the petitioners by filing their contesting written statement and the learned Trial Court after framing of issues invited the parties to adduce their respective evidence which they produced and after appreciating the same the learned Trial Court dismissed the suit of the

respondents through judgment and decree dated 06.09.2023. The respondents preferred an appeal whereas the petitioners filed cross objections before the learned Appellate Court who accepted the appeal of the respondents and dismissed the cross objections of the petitioners vide judgment and decree dated 09.02.2024. Hence this Civil Revision.

3. Learned counsel for the petitioners contends that the learned Appellate Court failed to return independent findings on the issues of limitation and non-joinder of necessary parties, particularly the subsequent vendees who admittedly purchased the considerable suit property in the year 1995 and are in possession of suit property as per their entitlement. It is urged that the appeal was allowed without addressing these material legal infirmities.

4. Conversely, learned counsel for the respondents supports the impugned judgment and submits that once the basic mutation is declared void, subsequent transactions automatically fall.

5. Arguments heard. Record perused.

6. The controversy in the instant matter revolves around the questions of limitation, non-joinder of necessary parties, and the legal effect of subsequent alienations made on the basis of the impugned mutation.

7. Before advertng to the question of non-joinder, it is imperative to examine the foundational issue of limitation, which strikes at the very root of the maintainability of the suit. The admitted chronology of events reveals that Mutation No.336 was attested on 19.07.1994, subsequent alienations in favour of third parties were sanctioned in the year 1995, and the present suit was instituted on 06.07.2019, after an unexplained lapse of nearly twenty-five years. The plaint does not disclose any specific date of knowledge nor does it plead circumstances sufficient to bring the case within the exception of subsequently discovered fraud so as to extend the period of limitation particularly when the petitioners admit the possession of subsequent vendees on the land and continuous cultivation thereon. Bald and omnibus allegations of fraud, unaccompanied by particulars and

unsupported by any explanation for prolonged inaction, do not suspend the running of time. In “Mst. RABIA GULA and others versus MUHAMMAD JANAN and others” (2022 SCMR 1009), the Hon’ble Supreme Court has held as under:-

“8...

8.8 Needless to mention that, a plaintiff who wants to avail the benefit of section 18 of the Limitation Act must assert the commission of such fraud by the defendant, in the plaint, and should also give the particulars thereof, and the date of knowledge, as required under Rule 4 of Order VI of the Code of Civil Procedure 1908, and then prove the same through positive evidence.⁴

8.9 In the present case, the "person injuriously affected" by the alleged fraud (if it were committed) in getting the gift mutation sanctioned was the respondent's father, Mawaz Khan (the purported donor). The respondent derived his right to institute the suit to challenge the gift mutation from his father, being his legal heir. It is, therefore, the date of the knowledge of his father, not of the respondent that is the starting point for computing the limitation period of six years provided in Article 120 of the Schedule to the Limitation Act - the residuary Article applicable to suits instituted, under section 42 of the Specific Relief Act 1877 ("Specific Relief Act"), for declaration of any right as to any property.

8.10 In this regard, we note that the respondent (plaintiff) did not assert in the plaint that the appellants (defendants), by means of fraud, kept Mawaz Khan, his father (the person injuriously affected) from the knowledge of his right to institute the suit to challenge the gift mutation, during his life, nor did he give the particulars thereof; what to say of proving the same. Furthermore, we note that the respondent (plaintiff) did not assert any such fraud of the appellants even against himself, and give any date of his attaining knowledge of such fraud and his right to institute the suit. Therefore, the benefit of section 18 of the Limitation Act for computing the limitation period for instituting the suit to challenge the gift mutation cannot be extended to the respondent (plaintiff).

In the said judgment, the Hon’ble Supreme Court has also observed as under:-

“8...

8.15 The situation is, however, different in a case where the beneficiary of an entry in the revenue record

also takes over the possession of the land on the basis of sale or gift transaction, as the case may be, recorded in that entry. His action of taking over possession of the land in pursuance of the purported sale or gift is certainly an "actual denial" of the proprietary rights of the purported seller or donor. Therefore, in such a case, if the purported seller or donor does not challenge that action of "actual denial" of his right, within the prescribed limitation period, despite having knowledge thereof, then his right to do so becomes barred by law of limitation."

8. Limitation is not a mere technical plea but a substantive bar affecting the jurisdiction of the Court. Where a suit is demonstrably time-barred on the face of the record, the Court lacks the legal authority to proceed further, and all ancillary questions, including impleadment of parties or recording of evidence, become academic. A time-barred suit cannot be revived through procedural rectification, nor can the bar of limitation be diluted by directing a remand for fresh trial. Courts are not expected to prolong litigation where the outcome is legally foreclosed. On the admitted facts, therefore, the suit was ex facie barred by limitation at the time of its institution.

9. Upon examination of record it transpires that it is an admitted fact that petitioners further alienated the considerable suit property in favour of subsequent vendees. Although the respondents initially impleaded the subsequent vendees as defendants but, on 15.10.2019, voluntarily withdrew the suit against defendants No.5(الف) to 7 without assigning any plausible reason. Resultantly, the suit proceeded in the absence of parties who admittedly derived title from the impugned mutation and are presently in possession of the suit property as per their entitlement. Such conduct amounts to an abandoning of claim against those parties (defendant No.5(الف) to 7) and constituting of admission by conduct of respondent/plaintiff cannot be allowed to circumvent the legal consequences of a deliberate procedural choice. It is well settled that where any suit was likely to be decreed and by such decree any party was going to be adversely affected, then such party was necessary party and it was essential that it should be present before the Court, so as to avoid multiplicity of proceedings and shorten litigation. This Court, in case-law

titled as “MUHAMMAD DIN versus SHER MUHAMMAD” (1999 CLC 1526 [Lahore]) has held that a subsequent vendee who purchased a property prior to the institution of a suit becomes a necessary party and his non-impleadment is fatal for the suit.

10. During the course of arguments, learned counsel for the petitioners has candidly conceded that the subsequent vendees are in possession of the suit land as per their entitlement. Moreover, there is neither pleading nor any proof on record to suggest that the said vendees were party to any fraud or collusion. Guidance can be sought from the case-law titled as “BASHIR AHMED through Legal Representative and others versus MUHAMMAD HUSSAIN and others” (PLD 2019 Supreme Court 504), wherein the Hon’ble Supreme Court has held as under:-

“10...Moreover, it is by now a settled principle that when a person raises the ground of fraud or concealment to allege his claim or defend his stance, the same has to be specifically pleaded with clear particulars. Some of the leading cases decided by this court are *Ghulam Shabbir v. Mst. Nur Begum and others* (PLD 1977 SC 75), *Izzat Bakhsh v. Nazir Ahmad and 13 others* (PLD 1976 SC 508), *Faizum alias Toor v. Nander Khan and others* (2006 SCMR 1931), *Akbar Ali Khan and others v. Mukamil Shah and others* (2005 SCMR 431) and *Haji Muhammad Saleem v. Khuda Bakhsh* (PLD 2003 SC 315).”

In these circumstances, subsequent vendees *prima facie* qualify as *bona fide* purchasers for valuable consideration, whose rights could not be adjudicated without affording them an opportunity of hearing. There is no cavil to the legal proposition that a void transaction does not confer valid title and that subsequent transactions may fall with the fall of the basic transaction. However, this principle cannot be applied in isolation and in mechanical manner. Each case is to be examined on its own facts, particularly where third-party rights have intervened decades earlier.

11. In these circumstances, the willful withdrawal of the suit against the subsequent vendees assumes decisive significance. During the course of arguments though the learned counsel for the petitioners expressed no objection on the matter being remanded, however, this Court is of the

view that having elected to proceed in absence of subsequent vendees, the respondents cannot now be permitted to assail transactions affecting their rights, particularly after the passage of decades, nor can the Court neutralize the legal effect of such abandonment by directing a remand. To do so would amount to rewarding tactical litigation and undermining the principles of finality, certainty of titles, and judicial discipline.

12. The findings of both the Courts below regarding contradictions in evidence, it can safely be observed that the minor discrepancies highlighted in the oral testimony of the defence witnesses are of no legal significance, particularly when the evidence pertains to events that occurred more than two decades earlier, as such variations are natural with the passage of time. Where the defence version stands corroborated by long-standing documentary record and admitted possession, trivial inconsistencies in oral evidence do not go to the root of the matter and cannot be made the basis for unsettling settled rights. Guidance in this regard can be sought from the dictum laid down in case-law titled as “MUHAMMAD ILYAS and others versus KHADIM HUSSAIN and others” (2006 SCMR 1761), wherein in the Hon’ble Supreme Court has held as under:-

“10... Insofar as the question of contradictions is concerned no grave contradiction could be pointed out by the learned Advocate Supreme Court on behalf of the petitioners and minor contradictions can be ignored which usually do creep in with the passage of time No other point was argued. The petition being meritless is dismissed and leave refused.”

13. The impugned judgment and decree further reflect that the learned appellate Court primarily focused on dismissing the cross-objections filed by the petitioner and failed to taken into consideration the above mentioned key legal issues, rendering the impugned judgment and decree unsustainable in law. Even otherwise, the findings on cross-objections rendered by the learned appellate Court are the result of mis-application of the law. The Hon’ble Supreme Court in case-law titled as “Mst. BIBI

FATIMA versus MUHAMMAD SARWAR” (PLJ 2022 S.C 219) has held as under:-

“6. Now adverting to the fact of non-filing of cross-objection or cross-appeal by the appellant/ defendant against the finding of learned Trial Court (recorded in favour of the respondent/plaintiff while dismissing his suit) qua performance of Talab-e-Ishhad. It is a matter of record that the Trial Court, while dismissing the suit of the respondent/plaintiff, found him successful in proving the mandatory Talab-e-Ishhad under the law. The appellant/defendant contested the appeal before the first appellate Court; however, did not file any cross-objection or cross-appeal against the above finding of the Trial Court. Now question for determination by us is whether in every case when some findings are recorded against a defendant and ultimately the suit is dismissed by the trial Court the defendant is required to file cross-appeal or cross-objection or he can argue against the findings recorded against him without filing cross-appeal or cross-objection before the appellate Court. In our view when no part of decree is against the defendant the defendant can argue against the said findings before the appellate Court in the appeal filed by the plaintiff without filing cross-appeal or cross-objections and in case a partial decree is passed against the defendant and rest of the suit is dismissed if the plaintiff files appeal against the portion of dismissal of suit then it is incumbent upon the defendant to file cross-appeal or cross-objections to challenge the part of grant of decree against him. Now we discuss the principle.

7. The appellate Court is empowered, in the interest of justice, to allow appropriate relief to non-appealing parties where the appeal is with regard to whole of the decree in terms of Order XLI Rule 33, C.P.C. The Court has also inherent powers under Section 151, C.P.C., to make such orders, as may be necessary for the ends of justice and to prevent the abuse of the process of the Court. These are all enabling provisions; the powers thereunder can be exercised by the Court to cover ostensibly impossible situations, for complete dispensation of justice, for which C.P.C. has been designed, but despite the best efforts of the draftsman, to cater for all possible situations, if it is found lacking in meeting some eventualities, the Court can act ex-delicto justitiae, supply the omission in the procedure, adopt methodology, for effectually carrying out the purpose. Reliance can be made to "North-West Frontier Province v. Abdul Ghafoor Khan" (PLD 1993 Supreme Court 418) and "Muhammad Nawaz v. Mst.

Ahmad Bibi" (1995 SCMR 266). In case where no part of a decree was against the vendee-defendant he was not bound to file cross-appeal or cross-objection..."

14. In view of the admitted and undisputed facts, the suit was hopelessly barred by limitation and stood further vitiated by the conscious withdrawal against necessary parties. The learned Appellate Court, by failing to address these jurisdictional defects, fell into material error.

15. Accordingly, this Civil Revision is **allowed**, the impugned judgment and decree dated 09.02.2024 passed by the learned Appellate Court are hereby *set aside*. The judgment and decree dated 06.09.2023 passed by the learned Trial Court are restored, albeit for the additional reasons recorded herein, and the suit stands **dismissed** with finality.

(Syed Ahsan Raza Kazmi)
JUDGE

Approved for reporting.

JUDGE

Ejaz*